

INDUSTRIAL PSYCHOLOGY REPORT

**EMPLOYABILITY AND EARNING POTENTIAL FOR
BOIKAMOSO LEBOHANG NGCONGWANE**

This report is solely for the attention of the legal parties and legitimate experts involved in this medico-legal case – it is not to be disclosed to the claimant or any other related person.

Client Information	
Name and Surname	Boikamoso Lebohang Ngcongwane
Identity Number	140911 6503 089
Date of Birth	11 September 2014
Nationality	South African
Place of Birth	Free State
Current Age	11 years
Gender	Male
Home Language	IsiZulu
Highest Level of Education	Grade 03
Date of Accident	09 April 2023
Age at the time of the Accident	08 years
Grade at the time of the Accident	Grade 02
Current Grade	Grade 04
Type of Accident	Motor Vehicle Accident
Assessment Date	01 August 2024
Report Date	01 December 2025
Attorney Name	Chuene Attorneys
Your Reference	MR CHUENE/MVA/19481
Our Reference	ChueneAttorneys/IP/3018.08.24

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1. INTRODUCTION

Following instruction from **Chuene Attorneys**, an assessment was conducted on Ms Mamsi Jeminah Ngcongwane (hereafter referred to as Ms Ngcongwane) regarding her son Boikamoso Lebohang Ngcongwane (hereafter referred to as Boikamoso). Boikamoso was injured as a result of a motor vehicle accident on the 09th of April 2023.

1.1. Purpose of the Report

The purpose of the report is to evaluate Boikamoso's prospects of employability and earning potential with regard to the following two aspects:

- disregarding the accident and injuries sustained; and
- having regard for the accident and injuries sustained.

This report is based on the results of the interview conducted with the claimant on the 01st of August 2024, the medical and other relevant reports available, the labour market trends, as well as the claimant's particular circumstances. Furthermore, educational history, family history, and biographical factors are considered when discussing the employability of the claimant. The conclusions arrived at, and recommendations made may change if any other significant information is presented.

1.2. Assessment Methodology

This report takes cognisance of the medical reports submitted, which pertain to Boikamoso's present and future mental and physical state. In addition, educational history, family history, and biographical factors are considered when discussing the employability of the individual concerned.

The assessment was based on a structured interview using a biographical questionnaire. The purpose of the assessment was clearly explained to Ms Ngcongwane, and informed consent was obtained from her. Information regarding the accident and accident-related sequelae was obtained, as well as information regarding Boikamoso's social-economic status, and pre- and post-accident medical history. Where it was applicable, selected information was checked against collateral. No psychometric tests were administered during the assessment.

1.3. Behaviour and Presentation

Boikamoso arrived on time for the scheduled assessment accompanied by his mother, Ms Ngcongwane. Ms Ngcongwane made a concerted effort to provide responses to questions posed to her, some of the questions were answered by Boikamoso although he seemed shy. The interview was conducted in IsiZulu.

1.4. Documents Received

The following supporting documentation was received:

- Instruction Letter from Chuene Attorneys
- Medical Records from F. S. Thebe Hospital (Harrismith)
- RAF 01 Form (General Practitioner) completed by Dr I. H. Chauke
- Orthopaedic Surgeon Report completed by Dr S. K. Mafeelane
- Specialist Neurosurgeon Report completed by Dr M. P. Seroto
- Diagnostic Radiologist Report completed by Dr Z. C. C. Mkhabele
- Clinical Psychologist Report completed by Ms N. T. Masia
- Educational Psychologist Report completed by Ms A. Moyo
- Occupational Therapist Report completed by Ms L. Mashishi
- Boikamoso's School Reports
- Copy of Boikamoso's Birth Certificate
- Copy of Ms Ngcongwane's Identity Document

2. BACKGROUND INFORMATION

2.1. Personal and Family Background

Boikamoso is a 11-year-old minor whose parents are not married. Ms Ngcongwane reported that Boikamoso does not have an existing relationship with his father and that he has two paternal siblings with whom he has no contact. His familial details are noted in Table 1 below.

Table 1: Claimant's Familial Details:

Name and Surname	Relationship	Age	Education	Occupation
Mamsi Jeminah Ngcongwane	Mother	32 years	Grade 12	Cashier

2.2. Residential Information

Boikamoso resides with his maternal family (grandmother, mother, aunts, uncles and cousins) in Free State. They live in a four-bedroomed mud-built house with a kitchen, dining room and two external rooms. They make use of a pit toilet and use a plastic basin to bath. They do not have access to electricity, and their water is supplied through a yard tap. They live far from local amenities and Boikamoso relies on public transportation for his daily commute.

2.3. Medical History

Ms Ngcongwane reported that the accident under discussion was Boikamoso's first motor vehicle accident and that he has not been involved in any subsequent accidents. She further noted that Boikamoso had good health prior to the accident, with no history of chronic diseases or trauma related surgical interventions. **Ms Moyo (Educational Psychologist)** notes in page 05 of her report that Boikamoso's developmental milestones were within the standard time frame.

2.4. Educational History

Table 2: Boikamoso's Educational Background

Education Institution	Year	Qualification	Comment
Morena Tshohisi Moloi Primary School	2020 - 2021	Grade R	Passed (Repeated due to age)
Itlhaneng Intermediate School	2022	Grade 01	Passed
Itlhaneng Intermediate School	2023	Grade 02	Passed - <i>Accident Occurred</i>
Itlhaneng Intermediate School	2024	Grade 03	Passed
Qhubeka Public School	2025	Grade 04	Current Grade

NB: Proof of the above-mentioned school progression was provided in the form of post-morbid school reports and current school report (Refer to Annexures C & D). The writer notes that Ms Ngcongwane reported that Boikamoso was a learner in Grade 02 at Itlhaneng Intermediate School when the accident occurred. Following the accident, he recuperated at home for approximately five months, and he passed Grade 02 at the end of 2023. Ms Ngcongwane further reported that Boikamoso has not repeated any grades, and he is currently completing Grade 04 at Qhubeka Public School.

2.5 Collateral Information

Obtaining collateral information is crucial for comprehending the full impact of the accident on the individual's educational achievement. The writer acknowledges the importance of having received Boikamoso's post-morbid school reports as well as a current school report, which provide insight into his academic performance, attendance record, behavioural observations, and/or any challenges noted by teachers or school officials (*Refer to Annexures C & D*).

3. THE ACCIDENT

Ms Ngcongwane reported that Boikamoso was involved in a motor vehicle accident on the **09th of April 2023**. She reported that Boikamoso was a passenger in a private vehicle when the driver lost control of the vehicle, causing the vehicle to overturn a couple of times. She reported loss of consciousness and noted that Boikamoso regained awareness at the scene. She further stated that he was transported by an ambulance to F. S. Thebe Hospital (Harrismith), where he received medical treatment. Ms Ngcongwane noted that Boikamoso attended follow up appointments at Mofumahadi Manapo Mopeli Regional Hospital

3.1. Sustained Injuries

Concerning the various medical records and what was stated by the experts, Boikamoso sustained the following injuries:

- Head injury.
- Right clavicle fracture.

3.2. Treatment Received

- Clinical and radiological examination.
- ATT injection.
- Analgesics.
- Neuro-observation.
- Arm sling.
- Follow up appointments.

3.3. Current Complaints (as reported by Ms Ngcongwane & noted by the Experts)

- **Physical and Functional Complaints**
 - Right shoulder pain with physical exertion and in cold weather.
 - He tires easily when playing.
 - Difficulty lifting and carrying heavy objects.
- **Emotional/Psychosocial Complaints**
 - Travel related anxiety - morbid fear of vehicles.
 - He is emotional and cries a lot.
 - Easily irritable and angered.
 - Insomnia.
 - He overthinks.
 - Self-isolation.
 - Mood swings.
 - Intrusive thoughts about the accident.
 - Self esteem difficulties due to working slow at school.
- **Cognitive/Neurological Complaints**
 - Recurrent headaches especially in hot weather.
 - Decline in concentration.
 - Memory impairment.
 - Poor academic performance.
 - Teachers complain that he is a slow learner.

3.4. Expert Findings

More information about the extent of injuries sustained and expenses incurred are contained in the documents at hand, and reference will be made to them as well as experts' opinions and reports.

Table 3: Summaries of Other Expert's Reports

Dr Mafeelane (Orthopaedic Surgeon)
<u>"Pain and Suffering"</u> <i>He suffered severe pain after the accident.</i> <i>He continues to suffer the discomfort of chronic pain from the injured area. (page 08)</i>

Impact of Injury

He has difficulty carrying and lifting heavy objects. (page 08)

Disability and Impairment

...He has 10% upper extremity impairment (whole person impairment is 6%). Clavicle Malunion Fracture.

The injury he sustained has resulted in serious long-term impairment. (page 09)

Dr Seroto (Specialist Neurosurgeon)

"CLINICAL EXAMINATION

SCARS EMANATING FROM THE ACCIDENT

...Left shoulder scar. (page 08)

REVIEW AND DISCUSSION

ACCIDENT-RELATED NEUROSURGICAL INJURIES

He suffered from a concussive brain injury which falls within the spectrum of mild traumatic brain injury.

Evidence:

Subjective evidence

Chronic symptoms: headache and memory impairment.

Loss of consciousness. (page 10)

POST ACCIDENT SEQUALAE

Post-concussive syndrome evidenced by:

Headache and memory problems. (page 11)

Neurocognitive and neurophysical impairment

The claimant has a memory impairment.

He reported signs of PTSD. (page 11)

Body image

The claimant has accident-related scarring.(page 11)

DAMAGES

PAIN AND SUFFERING

The claimant suffered from acute pains for weeks and has suffered from these pains to date. (page 12)

LOSS OF AMENITIES

Loss of amenities occurred during hospitalization. (page 12)

IMPAIRMENT RATING

...Total whole person impairment (WPI): 7%. (page 12)”

Ms Masia (Clinical Psychologist)

“DISCUSSION

Cognitive Functioning

Discrepancies

The cognitive assessment uncovered notable discrepancies, particularly in the areas of visual memory and visuo-motor spatial and perceptual skills. Boikamoso demonstrates a better recall of multiple simple items as opposed to a single complex item. This indicates a fragmented approach to memory processes, where simpler structures are handled with more ease than more complex, cohesive tasks. In terms of visuo-motor spatial and perceptual skills, Boikamoso exhibits good constructional ability with multiple items but encounters difficulty with a single complex item, further compounded by poor perceptual reasoning. This suggests difficulty integrating complex visual and spatial information, affecting tasks requiring comprehensive analysis, spatial awareness, and problem-solving. (page 18 - 19)

Deficits

The assessment reveals substantial deficits in several cognitive areas. Attention and concentration are notably poorer than expected, indicating struggles with maintaining focus, which is compounded by reduced motor and mental speed. This slowing in processing speed likely

exacerbates concentration difficulties, impacting the ability to efficiently complete tasks or follow multi-step instructions. (page 19)

Working memory performance was poor, underlying Boikamoso's learning difficulties. Given that working memory is integral for holding and manipulating information temporarily, impairments in this area can affect learning new material or following conversations. (page 19)

Poor auditory memory further contributes to these learning difficulties, particularly in environments where information is primarily communicated verbally, such as a classroom. This can hinder Boikamoso's ability to retain verbal instructions and engage in discussions. (page 19)

Rote verbal memory deficits, supported by working and auditory memory difficulties, suggest challenges with tasks requiring repetitive learning or the memorisation of sequences, such as spelling or the multiplication table. Concept formation and reasoning deficits further exacerbate learning difficulties, inhibiting the ability to form abstract ideas or problem-solve effectively. (page 19)

Emotional functioning

Current Psychological Experience

The DAP and KFD tests illustrate themes of striving and unmet goals, inadequacy, and indirect aggression. There is a complex relationship with maternal figures, mingling affection and disciplinary respect, overlayed with latent anger, possibly reflecting unmet emotional needs. (page 21)

Academic functioning

Emotional Factors

From an emotional perspective, Boikamoso has been experiencing symptoms of anxiety and depression, as self-reported during the clinical interview and corroborated by the emotional test findings. These emotional difficulties can lead to a decrease in motivation and an inability to cope with work-related stressors, thereby diminishing performance. The anxiety symptoms further

compound the challenges in maintaining focus and managing interpersonal interactions at work. (page 23)”

Ms Moyo (Educational Psychologist)

“Formulation and discussion

Pre-Accident Summary:

...Boikamoso was born full-term with no complications, met developmental milestones on time, and had no prior behavioural, medical, or psychiatric concerns. (page 16)

The accident occurred on April 9th when Boikamoso was approximately eight years old, likely during his second term of Grade 2. Available pre-accident information, although limited to a single report from two terms, indicates that his academic performance ranged from average, with only minor difficulties noted. While this single source may not provide a comprehensive picture, it nonetheless suggests that Boikamoso’s educational functioning prior to the accident was generally within the average range. Considering his birth and developmental history, it is reasonable to infer that Boikamoso’s cognitive functioning before the accident was likely average, possibly towards the lower end of the average spectrum. In terms of his functional capacity at that time, he appeared capable of progressing through a school setting with adequate support, with potential to successfully complete his schooling up to Grade 12, including obtaining a diploma Pass. (page 16)

This baseline provides an important context for understanding the impact of the motor vehicle accident on his subsequent academic and cognitive development. It also highlights the need for ongoing assessment and targeted interventions to support his educational progress moving forward. (page 16)

The accident and its aftermath

The discrepancy between Boikamoso’s classroom performance and standardized testing outcomes can be understood through several factors. Compensatory strategies, including effort-based grading, peer support, and simplified classroom tasks, enable him to “pass” in familiar settings despite underlying deficits. His intact visual reasoning abilities support success in subjects that rely heavily on diagrams and spatial skills, such as Natural and Social Sciences. Conversely,

standardized assessments place greater demands on rapid processing, working memory, and fluency, exposing his impairments more clearly. Emotional factors, including anxiety, may also lead to disengagement during formal testing, whereas the familiar classroom environment encourages persistence. (page 18)

Looking ahead, Boikamoso's cognitive profile and associated physical and psychosocial factors suggest that, without intensive and targeted interventions, his academic progression will likely be limited to approximately Grade 12 (NQF Level 4 equivalent). While there is an estimated 80% chance of neurological recovery by ages 10 to 11, the critical early school years lost to injury create permanent gaps in foundational literacy and numeracy skills, impeding further progression to matriculation (NQF Level 4). Chronic pain and fatigue further constrain his capacity to pursue physically demanding vocations, and psychosocial issues such as PTSD and low self-esteem elevate the risk of educational disengagement. Nonetheless, Boikamoso's visual-spatial strengths, persistence, and family support present opportunities for success in vocational pathways requiring less verbal demand, such as computer literacy, basic graphic design, or retail operations. (page 18)

In summary, Boikamoso's prognosis without sustained support is guarded, with a significant risk of school dropout and limited employment opportunities. However, with coordinated neurorehabilitation, educational scaffolding, and psychosocial interventions, there is potential for achieving NQF Level 4 through alternative educational pathways. The adolescent period represents a critical window for maximizing recovery, underscoring the urgency of comprehensive, multidisciplinary intervention to improve his developmental trajectory and quality of life. (page 18)"

Ms Mashishi (Occupational Therapist)

"Work Potential

During the evaluation, screening of his scholastic functioning indicated that Boikamoso's basic shapes concepts was considered inadequate for his developmental age... (page 22)

The writer is of the opinion, that future occupational prospects will be directly linked to the level of education he manages to secure. The lower the level of education he manages to secure, the

higher the level of physical exertion expected from him in the future, in the execution of probably medium and heavy work tasks. (page 22)

The writer is of the opinion that Boikamoso possessed the residual work capacity to in future pursuit sedentary, light to medium strength requirement workloads, with exclusion of frequent to constant above shoulder level reach action, exclusion of a power grasp in the right hand. (page 22 - 23)

Taking the Educational Psychologist findings into account, he will be suitable for unskilled and trainable in semi-skilled occupations. (page 23)

He will be able to operate in an accommodative work environment, in the open labour market, where reasonable accommodation can be provided for any residual deficits. (page 23)

Loss in Earning Capacity

The writer is of the opinion that from a functional perspective, due to injuries sustained, Boikamoso has suffered a decline in future earning capacity. His vocational potential and level of competitiveness in the open labour market will be compromised by ongoing symptomology. (page 23)”

4. PRE- AND POST-MORBID POTENTIAL FUNCTIONING

4.1. Pre-morbid potential functioning (had the accident not occurred)

The information covered below reflects Boikamoso’s pre-morbid functioning. At the time of the accident, the claimant was 08 years old and a learner in Grade 02 at Itlhahaneng Intermediate School. The writer notes that Ms Ngcongwane further reported that Boikamoso was in good health prior to the accident and presented with intact neurodevelopmental functioning.

The writer takes cognisance of Boikamoso’s socio-economic background as well as his mother’s highest level of education and notes the latest trend indicating that children are likely to achieve higher levels academically and vocationally compared to their parents. This is owing to the positive changes in the education landscape that have seen massive support given to learners, in the form

of study loans such as NSFAS, to promote economically disadvantaged learners. In light of this, the writer opines that Boikamoso would have likely achieved more than his family academically and vocationally. Therefore, considering that before the accident, Boikamoso had no physical, cognitive, psychological, or psycho-social difficulties that would have hindered his educational and career progression, the writer opines that there is no reason to assume that he would not have been able to complete Grade 12 and continue with further studies at a tertiary level.

Given the aforementioned, the writer notes that the Educational Psychologist is the appropriate expert to comment on Boikamoso's pre-morbid intellectual ability and likely educational progression. In this regard, **Ms Moyo (Educational Psychologist)** opined that, *"Considering his birth and developmental history, it is reasonable to infer that Boikamoso's cognitive functioning before the accident was likely average, possibly towards the lower end of the average spectrum. In terms of his functional capacity at that time, he appeared capable of progressing through a school setting with adequate support, with potential to successfully complete his schooling up to Grade 12, including obtaining a diploma Pass"* (page 16). Thus, considering the opinion of the Educational Psychologist, the writer notes that Boikamoso's academic and career progression pre-accident would have probably followed the following scenario:

Scenario: Grade 12 with Diploma (NQF Level 06):

Had the accident not occurred, Boikamoso would have probably continued with his schooling until he completed Matric in 2033 at the approximate age of 19 years. Following this, he would have likely pursued a tertiary qualification and obtained a Diploma in a field of his choice. Following this he would have sought employment in the open labour market, after a post-qualification unemployment period of between six months to twelve months, in light of the unemployment rate of 31.9% (3rd Quarter of 2025) as stated by STATSSA. With an NQF Level 6 qualification, he would have likely entered the open labour market at the approximate age of 23 years, earning at the **lower quartile** of the **early career stages** of individuals with a Diploma, as proposed in the Quantum Yearbook (Koch, 2025) and noted in Table 4 below.

Table 4: STATSSA EARNINGS BY LEVEL OF EDUCATION (Quantum Yearbook 2024):

Level of Education	Career Stage	Formal Sector Only R1000 p/a		
		LQ	MED	UQ
Grade 12 with a Diploma	Early	114	201	346
	Mid	167	285	486
	Late	218	367	622

Furthermore, he was likely to benefit from on-the-job training and further training, and development. With career growth and more experience in his line of work, his earnings would have also increased. It is anticipated that his earnings would have probably progressed to the **upper quartile** of the **late-career stages** of individuals with a Diploma (Koch, 2025), by the approximate age of 45 years old. Thereafter, annual inflationary-related increases would be the likely source of growth in his earnings until retirement age, at 65 years old.

The writer notes that Boikamoso's ability to progress in his career within the open labour market would have depended on the level of education he ultimately achieved, his age, his skillset, and the work experience he managed to obtain. Furthermore, his promotion to higher levels would also have depended on factors such as his work performance, availability of positions, and competition from other job applicants. It is the writer's opinion that Boikamoso would have probably worked until the retirement age of 65 years, depending on factors such as personal circumstances, state of health, and his company's retirement policy, etc.

4.2 Post-morbid potential functioning (after the accident)

Boikamoso was involved in the reported accident on the 09th of April 2023 and he was a learner in Grade 02 at the time. Ms Ngcongwane reported that Boikamoso was a learner in Grade 02 at Itlhaneng Intermediate School when the accident occurred. Following the accident, he recuperated at home for approximately five months, and he passed Grade 02 at the end of 2023. Ms Ngcongwane further reported that Boikamoso has not repeated any grades, and he is currently completing Grade 04 at Qhubeka Public School.

Post-accident, the writer notes that Boikamoso sustained a head injury, and he presents with cognitive difficulties. In this regard, **Dr Seroto (Specialist Neurosurgeon)** opined that *“He suffered from a concussive brain injury which falls within the spectrum of mild traumatic brain injury. Loss of consciousness. Post-concussive syndrome evidenced by: headache and memory problems. The claimant has a memory impairment”* (page 10 -11). In addition, **Ms Masia (Clinical Psychologist)** noted that *“The assessment reveals substantial deficits in several cognitive areas. Attention and concentration are notably poorer than expected, indicating struggles with maintaining focus, which is compounded by reduced motor and mental speed. This slowing in processing speed likely exacerbates concentration difficulties, impacting the ability to efficiently complete tasks or follow multi-step instructions. These cognitive difficulties profoundly affect Boikamoso’s daily life. In academic settings, attention and memory deficits can lead to challenges with following lessons, completing assignments, or engaging with peers during group work. This might result in feelings of frustration or reduced self-esteem due to difficulties keeping up with classmates”* (page 19-20). Thus, the writer is of the view that the accident has negatively influenced Boikamoso’s cognitive functioning, and this is likely going to affect his academic progression, which will have implications for the level of education he manages to achieve, post morbid. This will in turn affect his employability, future career prospects and earning potential in the future.

Furthermore, Boikamoso presents with psychological difficulties. In this regard, **Ms Masia (Clinical Psychologist)** opined that *“From an emotional perspective, Boikamoso has been experiencing symptoms of anxiety and depression, as self-reported during the clinical interview and corroborated by the emotional test findings. These emotional difficulties can lead to a decrease in motivation and an inability to cope with work-related stressors, thereby diminishing performance. The anxiety symptoms further compound the challenges in maintaining focus and managing interpersonal interactions at work”* (pages 23). The negative psychological states he presents with are anticipated to adversely affect his ability to deal with both school and life stressors, which will have a negative effect on his motivation to study. Furthermore, these psychological symptoms he presents with are likely to negatively impact his interpersonal interactions with peers and teachers within the school environment, thereby causing him to further withdraw, which results in a lack of support. Consequently, he may be at risk of developing mental health conditions like depression, due to his loneliness and lack of interaction with others, which will ultimately affect his academic and work performance in the future.

With the above in mind, the writer posits that Boikamoso's earnings and career progression will be determined by the level of education that he achieves. In this regard, **Ms Moyo (Educational Psychologist)** noted that *"In summary, Boikamoso's prognosis without sustained support is guarded, with a significant risk of school dropout and limited employment opportunities. However, with coordinated neurorehabilitation, educational scaffolding, and psychosocial interventions, there is potential for achieving NQF Level 4 through alternative educational pathways. The adolescent period represents a critical window for maximizing recovery, underscoring the urgency of comprehensive, multidisciplinary intervention to improve his developmental trajectory and quality of life"* (page 18). Thus, considering the Educational Psychologist's opinion, along with the difficulties that Boikamoso is experiencing post-accident, the writer opines that Boikamoso has been compromised by the accident, as he can no longer achieve his pre-accident educational level. Therefore, Boikamoso's career progression post-accident is likely to follow the following scenario:

Scenario: Grade 12 (NQF level 4):

Post-accident Boikamoso has the potential to obtain a Grade 12 level of education, NQF Level 04. Thus, taking into consideration his projected lower level of education and his physical, cognitive as and psychological difficulties, as well as the need reasonable accommodation with a sympathetic employer, he may compete for employment in the non-corporate sector as a semi-skilled employee. Thus, with an NQF Level 04, it is likely that he will enter the open labour market in 2035 at the approximate age of 21 years, earning at the lower quartile of semi-skilled workers in the non-corporate sector, as proposed in the Quantum Yearbook (Koch, 2025) and noted in table 5 below. Even though he may benefit from on-the-job training and development and his progression is likely going to be slow. Therefore, he is likely to progress and earn at the midpoint between the median and upper quartile of semi-skilled workers in the non-corporate sector (R. Koch, 2025) by the age of 45 years. Thereafter, annual inflationary increases would have been most likely the source of growth in her earnings until the normal retirement age of 65 years old.

Table 5: STATSSA Earnings by Level of Education (Quantum Yearbook 2025)

Category	LQ R p/a	MED R p/a	UQ R p/a
Semi-skilled Worker	40 700	87 000	228 000

He is likely to find it difficult to reach his estimated levels of efficiency as a result of the injuries he sustained in the accident. In this regard, **Dr Mafeelane (Orthopaedic Surgeon)** noted that *“...He suffered severe pain after the accident.....He continues to suffer the discomfort of chronic pain from the injured area. He has difficulty carrying and lifting heavy objects....He has 10% upper extremity impairment (whole person impairment is 6%).....The injury he sustained has resulted in serious long-term impairment”* (pages 08 and 09). In addition, **Ms Mashishi (Occupational Therapist)** opined that, *“The writer is of the opinion that Boikamoso possessed the residual work capacity to in future pursuit sedentary, light to medium strength requirement workloads, with exclusion of frequent to constant above shoulder level reach action, exclusion of a power grasp in the right hand. Taking the Educational Psychologist findings into account, he will be suitable for unskilled and trainable in semi-skilled occupations. He will be able to operate in an accommodative work environment, in the open labour market, where reasonable accommodation can be provided for any residual deficits”* (page 22 and 23). Considering the aforementioned, Boikamoso will be excluded from most jobs in both the formal and informal sectors (that he was suitably qualified for before the accident), and he will not be an equal competitor in the open labour market. It should also be noted that the recommended treatment should assist him to function better in his environment. He would require a sympathetic employer who would be willing to accommodate his limitations. However, sympathetic employers are very hard to come by, as most employers are unlikely to hire an individual with productivity-related issues.

In conclusion, taking into consideration his projected level of education, as well as his physical, functional and cognitive as well as his psychological challenges post-accident, Boikamoso is likely to find it difficult to find and sustain gainful employment in the open labour market as a result of the injuries he sustained in the accident in question. He will be discriminated against by employers who prefer candidates who are more academically qualified and physically able. His cognitive difficulties are likely to make her prone to errors and negligent mistakes at work. This is likely to have a negative impact on his productivity and efficiency at work, hindering his promotional opportunities. He will require a sympathetic employer who will give him work that will not aggravate his injuries. Based on these factors, the writer opines that Boikamoso will likely suffer a justifiable loss of earning capacity as a direct result of the accident, and this impact is expected to persist throughout his career until he retires.

5. LOSS OF EARNINGS

- Boikamoso was 08 years old and in grade 02 at the time of this accident on the **09th of April 2023**. Thus, he did not suffer past loss of earnings.
- In terms of a possible future loss of earning capacity, it would seem that the accident and its sequelae had resulted in physical, functional, and cognitive as well as psychological difficulties, which have most likely negatively affected his academic progression and rendered him an unfair competitor in the open labour market when compared to his uninjured peers. He is not expected to reach his pre-morbid career potential. Boikamoso will thus suffer a future loss in potential earnings until he retires at the age of 65 years old. Deference is given to the appropriate experts for financial and actuarial calculations of the capitalised value of Boikamoso's loss of earnings.
- General Damages and contingencies however are the prerogative of the Court or to be negotiated between the parties.
- Provision should be made for any past and future medical expenses and all treatment and recommendations as prescribed by the relevant expert(s).

6. RECOMMENDATIONS

- Provision should thus be made for the recommended interventions and treatment proposed by the experts.
- Additionally, provision should also be made for any past and future medical expenses incurred.
- For purposes of quantification of the claim, his loss of future earnings would be based on the difference between the pre-and post-morbid potential earnings.

7. RIGHT TO AMEND

It is important to take note that the opinions and recommendations provided in this document are based on the information provided at the time of compiling this report. Accordingly, the writer of this report cannot be held responsible or liable for inconsistencies, omissions or conflicting information, as it is subject to the claimant's recollection of the accident and the resulting trauma, as well as the details contained in the experts' medico-legal reports. The reader is therefore referred to detailed information included in the different medical expert reports and should keep in mind

that this report is subject to change due to the progression of time, changes in the claimant's situation as well as changes in the larger environment impacting the claimant. However, the writer reserves the right to amend the report, should any new information be provided. This report will remain valid to be used in a court of law for two years, from the date of the first consultation. If this matter has not been settled within two years from the date of the first consultation, an updated medico-legal report will have to be prepared.

Electronically Submitted)



Samkelisiwe Mahlasela

Industrial Psychologist

PS 0146331



8. ANNEXURES

ANNEXURE A: COPY OF MS NGCONGWANE'S IDENTITY DOCUMENT



ANNEXURE B: COPY OF BOIKAMOSO'S BIRTH CERTIFICATE

 **home affairs** E 5862131
Department:
Home Affairs
REPUBLIC OF SOUTH AFRICA 83/DHA - 5

PARTICULARS FROM THE POPULATION REGISTER I.R.O.:

**UNABRIDGED
BIRTH CERTIFICATE**

CHILD
SURNAME: NGCONGWANE
FORENAMES: BOIKAMOSO LEBOHANG
IDENTITY NUMBER: 1409116503089

GENDER: MALE
DATE OF BIRTH: 2014-09-11
PLACE OF BIRTH: HARRISMITH
COUNTRY OF BIRTH: SOUTH AFRICA

MOTHER:
IDENTITY NUMBER: 9302270936082
MAIDEN/SURNAME: NGCONGWANE
FORENAMES: MAMSI JEMINAH

DATE OF BIRTH: 1993-02-27
PLACE OF BIRTH: HARRISMITH
COUNTRY OF BIRTH: SOUTH AFRICA

FATHER:
IDENTITY NUMBER: _____
SURNAME: _____
FORENAMES: _____

DATE OF BIRTH: _____
PLACE OF BIRTH: _____
COUNTRY OF BIRTH: _____

ENDORSEMENTS:
NONE


DIRECTOR-GENERAL: HOME AFFAIRS

DATE PRINTED: 2014-09-22
ISSUED BY: YB0123


DEPARTMENT OF HOME AFFAIRS
PRIVATE BAG X3019
HARRISMITH 0880
2014-10-22
MOBILE UNIT
HARRISMITH OFFICE

ANNEXURE C: POST-MORBID SCHOOL REPORTS

ITLHAHANELENG INTERMEDIATE
 1082 ZWANE STREET, INTABAZWE, HARRISMITH, 9880
 PO BOX 281, HARRISMITH, 9880
 073 - 2539778
 441705012@fsschoolsportal.gov.za



Leamer: NGCONGWANE, BOIKAMOSO - 422036687
 Admission No: 20220083
 Birth Date: 2014/09/11

Grade + Class: 2A
 Date: 2023/12/11
 School Closes: 2023/12/13

Subject	Current Term Comment	Term 1		Term 2		Term 3		Final for Year	
		Mark	Level	Mark	Level	Mark	Level	Mark	Level
English First Additional Language (Gr 02)		70	6	40	3	40	3	51	4
isiZulu Home Language (Gr 02)		58	4	30	2	57	4	50	4
Life Skills (Gr 02)		71	6	58	4	59	4	65	5
Mathematics (Gr 02)		66	7	47	3	61	5	62	5
Result:		Achieved		Not Achieved		Achieved		Promoted	
Days Absent:		7		12		11		34	

Extra Mural _____

General Remarks:

Good Boikamoso!

Class Educator: 

DP/HOD: 

Principal: 

Parent: _____

Foundation Phase (Gr 1-3): The learner must achieve at least: Level 4 in HL and Level 3 in FAL and Level 3 in Mathematics
 Level 1 = 0 - 29.99 Not Achieved; 2 = 30 - 39.99 Elementary Achievement; 3 = 40 - 49.99 Moderate Achievement; 4 = 50 - 59.99 Adequate Achievement;
 5 = 60 - 69.99 Substantial Achievement; 6 = 70 - 79.99 Meritorious Achievement; 7 = 80 - 100 Outstanding Achievement;

ITLHAHANELENG INTERMEDIATE

1062 ZIWANE STREET, INTABAZWE, HARRISMITH, 9880
PO BOX 291, HARRISMITH, 9880
084 - 7629615
441705012@eschoolsportal.gov.za



Learner: NGCONGWANE, BONKAMOGO - 422039687
Admission No: 20220063
Birth Date: 2014/09/11

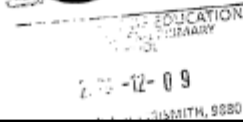
Grade + Class: 9A

Date: 2024/12/09

School Closes: 2024/12/11

School Reopens: 2025/01/15

Subject	Current Term Comment	Term 1		Term 2		Term 3		Final for Year	
		Mark	Level	Mark	Level	Mark	Level	Mark	Level
English First Additional Language (Gr 03)		43	3	35	2	36	2	44	3
IsiZulu Home Language (Gr 03)		44	3	50	4	80	7	57	4
Life Skills (Gr 03)		45	3	50	4	50	4	56	4
Mathematics (Gr 03)		46	3	46	3	82	7	55	4
Result:		Not Achieved		Not Achieved		Not Achieved		Promoted	
Days Absent:		3		14		6		27	
Extra Mural Participation:									
General Remarks:									



ANNEXURE D: CURRENT SCHOOL REPORT

QHUDEKA PS
STAND 1170 400 HILL, HARRISMITH, 9880
PO BOX 481, HARRISMITH, 9880
TEL: 058 622 1621
WWW.QHUDEKA.SCHOOL.GOV.ZA
Learner: MCOONKWE, BONAKOZO
Admission No: 025112
Born Date: 2014/09/11

Grade + Class: 4B
Date: 2025/07/25
School Closes: 2025/06/27
School Reopens: 2025/07/22

Term 1		Term 2		Term 3		Final for Year	
Mark	Level	Mark	Level	Mark	Level	Mark	Level
13	1	30	2				
23	1	29	1				
56	4	66	5				
58	4	55	4				
54	4	78	8				
50	4	74	6				
Result: Not Achieved		Not Achieved					
Days Absent: 3		6		0		9	

Subject: English First Additional Language (Q1-Q4)
isiZulu Home Language (Q1-Q4)
Life Skills (Q1-Q4)
Mathematics (Q1-Q4)
Natural Sciences and Technology (Q1-Q4)
Social Sciences (Q1-Q4)

Current Term Comment:

Extra Mural:

General Remarks:

QHUDEKA PUBLIC SCHOOL
25 JUL 2025
PO BOX 481, HARRISMITH 9880
PRINCIPAL
TEL: (058) 622 1621